NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 10.03.2026 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT: SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, HON'BLE MEMBER (TECHNICAL)

PETITION NUMBER	**: CP(CAA)/26(CHE)/2022**
APPLICATION NUMBER	**: CA(CAA)/413/2020**
NAME OF THE APPLICANT	**: Nivedana Power Pvt Ltd with SVL Ltd**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Sec 230 - 232 of CA, 2013**

ORDER

Vide separate order pronounced in open court, **CP(CAA)/26(CHE)/2022** is Allowed.

Sd/-
RAVICHANDRAN RAMASAMY
Member (Technical)

Sd/-
JYOTI KUMAR TRIPATHI
Member (Judicial)

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IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CP (CAA)26(CHE)/2022
In
CA (CAA)/413(CHE)/2020

(Filed under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Merger by Absorption of Nivedana Power Private Limited (1st Transferor Company) and Syandana Energy Private Limited (2nd Transferor Company) with SVL Limited (Transferee Company) and their respective Shareholders

NIVEDANA POWER PRIVATE LIMITED,
CIN: U40107TN2015PTC101515,
Having its Registered Office at
Bascon Futura SV, 4th Floor, No.10/1,
Venkatanarayana Road, T. Nagar, Chennai – 600 017.
Represented by its director, Mrs. Jagathpathi Kotteswari

... 1st Petitioner / Transferor Company

And

SYANDANA ENERGY PRIVATE LIMITED,
CIN: U40300TN2015PTC101543,
Having its Registered Office at
Bascon Futura SV, 4th Floor, No.10/1,
Venkatanarayana Road, T. Nagar, Chennai – 600 017.
Represented by its director, Mrs. Jagathpathi Kotteswari

... 2nd Petitioner / Transferor Company

With

SVL LIMITED,
CIN: U74900TN1986PLC013431,
Having its Registered Office at
123, Angappa Naicken Street, Chennai – 600 001.
Represented by its Authorised Representative,
Mrs. Jagathpathi Kotteswari

... 3rd Petitioner / Transferee Company

Order Pronounced on ***10.03.2026***

CORAM

SHRI. JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

Present: -

For Petitioners	*: I B Harikrishna & Pavan Kumar Gandhi, Advocates*
For Regional Director	*: Avinash Krishnan Ravi, Advocate*
For Income Tax Dept.	*: Rajkumar Jhabakh, Advocate*
For Official Liquidator	*: Pola Raghunath & B. Palani*

ORDER
(Hearing Conducted though Hybrid Mode)

1. This Company Petition has been filed by **NIVEDANA POWER PRIVATE LIMITED** *(hereinafter referred as 1st Petitioner Company)* and **SYANDANA ENERGY PRIVATE LIMITED** *(hereinafter referred as 2nd Petitioner Company)* with **SVL LIMITED** *(hereinafter referred as 3rd Petitioner Company)* under section 230-232 of the Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules') for approval of the Scheme of Merger by Absorption (hereinafter referred to as the '**SCHEME**') proposed between the Petitioners Company.

2. Affidavit have been filed in support of the petitions sworn in by **Mrs. Jagathpathi Kotteswari** for all the Petitioner Companies in the capacity of Director/ Authorised Representative. Corresponding Extracts of Board Resolutions dated 03.03.2020 and 16.03.2020 are placed on record.

3. 1ST MOTION APPLICATION

The Petitioner Companies had filed First Motion Application vide CA(CAA)/413(CHE)/2020 and sought directions for Dispensation/

Convening the meeting of its Members/ Shareholders and Creditors regarding approval of the proposed Scheme. Based on the submissions, this Tribunal vide Order dated 06.12.2021 ordered for dispensation of the meetings of Equity Shareholders/ Members, Secured & Unsecured Creditors of the Petitioner Companies.

4. SCHEME SUMMARY

The Scheme of Merger by Absorption of **NIVEDANA POWER PRIVATE LIMITED** and **SYANDANA ENERGY PRIVATE LIMITED** with **SVL LIMITED** and their respective Shareholders. Both the Petitioner Companies come under the jurisdiction of this Tribunal.

5. RATIONALE OF THE SCHEME

The rationale and benefits of the Scheme are briefed in Clause C of the Scheme as follows,

"C. RATIONALE OF THE SCHEME

The objects/ rationale of the proposed Scheme is as under:

- *Business and administrative synergies;*
- *Greater financial strength and flexibility for the Transferee Company, which would result in maximizing overall shareholder value, and will improve the competitive position of the combined entity;*
- *Avoid duplication of efforts;*
- *Reduction in multiplicity of legal and regulatory compliances, reduction in overheads, including administrative, managerial and other administrative costs; and*
- *Synergy benefits, such as, enhancement of net worth of the combined business for future growth and expansion."*

It is stated that the Board of Directors of both the Petitioner Companies have proposed the Scheme of Merger by Absorption. This

Scheme provides for various other matters consequential or otherwise integrally connected herewith.

6. In the second motion Petition filed by the Petitioner Companies, this Tribunal vide order dated 09.03.2022 directed the Petitioner Companies to issue notice to the Statutory / Regulatory Authorities concerned as well as directed to issue paper publication.

7. In compliance with the said directions issued by this Tribunal, the Petitioner Companies effected paper publications in ***"Business Standard"*** in English (All India Edition) and ***"Makkal Kural"*** in Tamil (Tamil Nadu Edition) on 06.04.2022. The notices were also served to

(i) Regional Director, Southern Region, Chennai,
(ii) Official Liquidator,
(iii) Registrar of Companies Chennai,
(iv) Income Tax Department and other regulators.

Pursuant to the service of notice of the petitions, the following statutory authorities have responded.

8. STATUTORY / REGULATORY AUTHORITIES

8.1. REGIONAL DIRECTOR

8.1.1. The Regional Director (RD), Southern Region to whom the notice was served on 23.03.2022, has filed its report on 08.04.2024 and has expressed its 'Observations' and 'No Objection' to the Scheme as follows,

> *"3. It is further submitted that as per clause as per Clause 1.3 of Part-I of the Scheme, the Appointed Date is 01.04.2019. It is noted that the company application was filed on 31.03.2020 and subsequently, the dispensation for holding the meeting with secured creditors have been approved by the Hon'ble NCLT, Chennai Bench dated 16.01.2022. Hence, we may point out that the appointed date is now beyond two years and hence, the*

company may be advised to change the appointed date in accordance with Ministry's General Circular No. 09/2019, dated 21.08.2019.

4. It is respectfully submitted that Hon'ble NCLT, Chennai vide its order in CA/413/(CAA)2020, dated 06.12.2021, has dispensed with convening a meeting for shareholders of Transferor Companies and Transferee Company as all the shareholders have given their consent for approving the scheme of Amalgamation.

5. It is respectfully submitted that there are no secured creditors for Transferor Companies 1 and 2 as per Statutory Auditor report. Hence, the meeting of secured creditors does not arise and same is reported in the order of the Hon'ble NCLT, Chennai dated 06.12.2021, in CA/413/(CAA)2020.

6. It is respectfully submitted that the Hon'ble NCLT, Chennai vide its order in MA/CA/100(CHE)/2020 in CA/413/(CAA)2020, dated 12.01.2022, has dispensed with convening a meeting of Secured Creditors of Transferee Company.

7. It is respectfully submitted that the Hon'ble NCLT, Chennai vide its order in CA/413/(CAA)2020 dated 06.12.2021, has dispensed with convening a meeting Of Unsecured Creditors of Transferor Companies 1 and 2 and Transferee Company.

…

12. It is humbly submitted that Clause 14 of part-II of the Scheme that upon the scheme becoming effective, the Transferor Companies are dissolved without being wound up, on an order made by the NCLT under Section 230-232 of the Companies Act, 2013.

…

14. The scheme of amalgamation filed with the application has been examined and it has been decided not to make any objection to the scheme, except for the observation at Para -12 of the report and it is therefore prayed that this Hon'ble National Company Law Tribunal Bench at Chennai may dispose of the matters on merits after duly considering the Report of the OL attached to Hon'ble High Court of Madras and pass such order/ orders as deemed fit and proper."

8.2. INCOME TAX DEPARTMENT

8.2.1. The Income Tax Department to whom the notice was served on 23.03.2022, has filed its report on 14.07.2025 and has expressed its 'Observations' and 'No Objection' to the Scheme as follows:

> *"2. Both the transferor companies are not assessed to tax in this office. While M/s Nivedhana Power Pvt. Ltd. is assessed in Corporate Chennai, M/s Syandana Energy Private Ltd. is assessed to tax in Corporate Ward-6(3), Chennai. The transferee company is assessed to tax in this office, i.e., Corporate Circle-3(1), Chennai.*
>
> *3. On perusal of the scheme of amalgamation, it is seen that the same is as per the provisions of Section 2(1B) of the Income Tax Act. Hence, there is no objection for the proposed scheme of amalgamation. However, the same is subject to the following:*
>
> *i. It is requested that the payment of outstanding demand, if any, by the First Transferor Company and Second Transferor Company may be ensured before ordering the amalgamation or payment of the same by the Transferee company after amalgamation.*
>
> *ii. The pending appeals, if any. by the First Transferor Company and Second Transferor Company as at the effective date shall be permitted to be continued and/or enforced against the transferee company i.e. M/s-SVL Limited (AAACS7696D)-*
>
> *In case, post amalgamation, if any information suggesting escapement of income is received by this office relating to the PAN Of the First Transferor Company and Second Transferor Company, the Department shall initiate such proceedings for assessment of the same in the case of the transferee company and the transferee company shall not have any objection for the same and shall pay the demand that may arise on account of such assessment proceedings."*
>
> *…*
>
> *"It is prayed that this Hon'ble Tribunal maybe please to take the memo and the letter on record and reconsider the same as the representation of the Income Tax Department as per Section 230(5) of Companies Act, 2013 and*

pass such other order(s) as this Hon'ble Tribunal may think fit in the facts and circumstances of the case."

8.2.2. It is stated that in the present scheme of merger by absorption the Income Tax Department can proceed with their proceedings if any and approval of this Scheme does not cause any prejudice.

8.4. OFFICIAL LIQUIDATOR

8.4.1. The Official Liquidator to whom the notice was served on 23.03.2022, has filed its report on 15.09.2023 and has expressed its 'Observations' and 'No Objection' to the Scheme as follows,

"2. It is submitted that the company petition made in CP/CAA/26/CHE/2022 in CA/CAA/413/CHE/2020 filed by the petitioner companies in the matter of Scheme of Amalgamation by absorption of Nivedana Power Private Limited (1st Transferor Company) and Syandana Energy Private Limited (2nd Transferor Company) with SVL Limited (Transferee Company) under section 230-232 of Companies Act, 2013, the Hon'ble NCLT Division Bench- II vide its order dated 9/3/2022 wherein directed the petitioner companies to issue notice of petition to the Official Liquidator in the matter of Scheme of Amalgamation by absorption. In compliance of the said order, the petitioner companies issued notice of the petition to the Official Liquidator. On receipt of the notice from the petitioner companies, the Official Liquidator appointed M/s. Chaturvedi & Co., Chartered Accountants from the empanelled list of Chartered Accountants of the Hon'ble High Court, Madras being maintained by this office to examine the scheme of amalgamation and scrutinize the books of accounts of the 1st and 2nd Transferor Companies and to submit report on the affairs of the Transferor Companies in terms of provisions of Section 230-232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

3. It is submitted that the Chartered Accountant has reviewed the books and accounts and other records of the 1st, 2nd Transferor Companies and

submitted its report to this office. Copy of the same is enclosed herewith and marked as Annexure-A for kind perusal of this Hon'ble Tribunal.

…

6. Accordingly, on the basis of documents produced before the Official Liquidator and on the basis of the documents available in the MCA data base and also considering the facts mentioned by the auditors in their report dated 14/8/2023, the Official Liquidator is of the view that the petition may be considered fairly as the affairs of the companies have not been conducted in a manner prejudicial to the interest of its creditors or public.

7. In view of the above, the Official Liquidator humbly submits that the above facts for consideration of this Hon'ble Tribunal and prays for the following orders: -

a) To take this report on record and consider the report of M/s. Chaturvedi & Co., Chartered Accountant;

b) To fix remuneration payable to the auditor who has investigated into the affairs of the 1st and 2nd Transferor Companies;

c) To direct the Applicant Companies to deposit such remuneration / fee within the stipulated period as prescribed by this Hon'ble Tribunal;

d) And pass such order/orders as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case."

8.5. REPLY TO THE STATUTORY OBJECTIONS

The Petitioner companies have filed their response to the statutory objections and the same is extracted below:

S.No	Statutory Authority	Observations	Comments
1	Report of the Regional Director, Ministry of Corporate Affairs, Chennai **Report dated 27.03.2024 - Filed on 08.04.2024**	**Para 3** - … Appointed date [i.e. 01.04.2019] is now beyond two years and hence, the company may be advised to change the appointed date in accordance with the Ministry's General Circular No. 09/2019 dated 21.08.2019.	• The Petitioner Companies have filed an Affidavit dated 19.06.2024 requesting this Hon'ble Bench to consider 01.04.2019 as the appointed date, since it is not against the interest of any of the stakeholders of the company and public at

		Para 14 - The scheme of amalgamation filed with the application has been examined and it has been decided not to make any objection to the scheme …	large, as both the first and second Transferor companies are the wholly owned subsidiaries of the Transferee company. • As the Regional Director has conveyed no objection after examining the Scheme, the Report may be accepted.
2	Report of the Official Liquidator **Report dated 15.09.2023 - Filed on 27.03.2024**	**Para 6** - … the Official Liquidator is of the view that the petition may be considered fairly as the affairs of the companies have not been conducted in a manner prejudicial to the interest of its creditors	• The OL report at para 4(u) and 4(v) has stated that both the Transferor Companies have certain unsecured borrowings from Nispratapa Consultancy Services Private Limited
		or public.	("**Nispratapa**"), and the same would get extinguished on the merger of Nispratapa with Transferee Company in CA/414/CAA/2020. • However, such a scheme proposed by Nispratapa and the Transferee Company **("Nispratapa Scheme")** has been withdrawn by the respective Companies, and the withdrawal of such scheme has been allowed by this Hon'ble Tribunal *vide* Order dated 15.09.2025 in IA(CA)/169(CHE)2025 in CP/CAA/28/CHE/2022

			• Nonetheless, it is submitted that withdrawal of the Nispratapa Scheme will not have any impact whatsoever in the present scheme as such unsecured borrowings of both the Transferor Companies from Nispratapa by both the Transferor Companies will remain in the books of the Transferee Company. The dues to Nispratapa by the Transferor Companies will get transferred to the Transferee Company
			like any other liability of the Transferor Companies getting transferred to the Transferee Company. Therefore, as stated above, withdrawal of the Nispratapa Scheme will have no impact.
3	Report of the Income Tax Department - By Commissioner of Income Tax, Corporate Circle-3(1) **Memo dated 08.07.2025 enclosing the letter dated 28.05.2025 - Filed on 14.07.2025**	**Para 3 of the Letter dated 28.05.2025** - On perusal of the scheme of amalgamation, it is seen that the same is as per the provisions of Section 2(1B) of the Income Tax Act. Hence, there is no objection for the proposed scheme of amalgamation. However, the same is subject to the following:	• The Petitioner Companies are agreeable to the conditions stated by the Income Tax Department in their letter dated 28.05.2025 with DIN: ITBA/COM/F/17/2025-26/1076504306(1). • As the letter by the Assessing Officer of the Transferee Company, stated to be on behalf of the

			Transferor Companies as well, has clearly stated that the Scheme is in accordance with Section 2(1B) of the Income Tax Act, and that the Income Tax department has no objections, subject to certain conditions stated in the said letter. Such conditions are agreeable to the Petitioners, and the scheme may be approved on the basis of the said letter.

3. It is humbly prayed that this Hon'ble Tribunal may be pleased to take on record the present Affidavit concerning the reports filed by the statutory authorities with regard to the Scheme of Amalgamation of M/s. Nivedana Power Private Limited (First Transferor Company) and M/s. Syandana Energy Private Limited (Second Transferor Company) with M/s. SVL Limited (Transferee Company), and pass such orders as this Hon'ble Tribunal may deem fit and proper in consideration of the facts and circumstances of the present case, and thus render justice.

9. ACCOUNTING TREATMENT

It is stated that the certificates issued by the Statutory Auditors certifying the Accounting Treatment of the petitioner companies are in compliance with Section 133 of the Companies Act, 2013 are placed on record.

10. OBSERVATIONS OF THIS TRIBUNAL

10.1. This Tribunal is of the view that the scheme as contemplated by the Petitioner companies seems to be *prima facie* not, in any way

detrimental to the interest of the members of the Companies. In view of the absence of any material objections from any statutory authorities and since all the requisite statutory compliances have been fulfilled, this Tribunal sanctions the Scheme of Merger by Absorption as well as the prayer made therein.

10.2. Notwithstanding the above, if there is any deficiency found or, the violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the petitioners.

10.3. While approving the Scheme as above, it is clarified that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges, if any, payment is due or required in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

11. THIS TRIBUNAL DO FURTHER ORDER

(i) That all properties, rights and interests of the 1st and 2nd Petitioner Companies shall, pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the 3rd Petitioner Company in terms of the Scheme.

(ii) That all the liabilities, powers, engagements, obligations and duties of the 1st and 2nd Petitioner Companies shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been

transferred and vested in the 3rd Petitioner Company in terms of the Scheme.

(iii) That the 'Appointed Date' for the Scheme shall be **01.04.2025** as mentioned in Clause 1.3 of the Scheme.

(iv) That the 'Effective Date' shall be defined as per the Clause 1.6 of the scheme.

(v) That the 'Record Date' for the Scheme is not defined in the Scheme.

(vi) That all proceedings now pending by or against the 1st and 2nd Petitioner Companies shall be continued by the 3rd Petitioner Company.

(vii) That all the employees/ workmen of the 1st and 2nd Petitioner Companies in service on the date immediately preceding the date on which the Scheme finally takes effect shall become the employees of the 3rd Petitioner Company without any break or interruption in their service with all the benefits.

(viii) That the 3rd Petitioner Company shall file the revised Memorandum and Articles of Association with the Registrar of Companies, concerned and further make the requisite payments of the differential fee (if any) for the enhancement of authorized capital of the 1st Petitioner Company after setting off the fees paid by the 2nd Petitioner Company.

(ix) That the Petitioner Companies, shall within thirty days of the date of receipt of this order cause a certified copy of this order

to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the 1st and 2nd Petitioner Companies registered with him on the file kept by him in relation to 3rd Petitioner Company shall be consolidated accordingly.

(x) That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

12. Accordingly, the Company Petition **CP(CAA)/26(CHE)/2022** stands **Allowed** on the aforementioned terms and is disposed of.

-Sd-	**-Sd-**
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)